

BEFORE THE STATE BOARD OF MARRIAGE AND FAMILY THERAPIST EXAMINERS AND THE
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2021-1500 & 2021-7055

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE MARRIAGE AND FAMILY THERAPY IN THE STATE OF COLORADO AND THE LICENSE TO PRACTICE AS A PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF XANDER JOHN BURGESS, LICENSE NO. MFT.0002050, LICENSE NO. LPC.0017035, AND REGISTRATION NO. MFTC.0013931 (EXPIRED),

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Marriage and Family Therapist Examiners and the State Board of Licensed Professional Counselor Examiners (together, "Boards") and Xander John Burgess ("Respondent"), as follows:

1. The Boards have jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order")
2. On or about October 14, 2021, Respondent was licensed to practice as a marriage and family therapist ("LMFT") and on or about March 29, 2021, Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado. On or about July 30, 2019, Respondent was registered to practice as a marriage and family therapist candidate ("MFTC") in the State of Colorado and the registration expired on October 14, 2021.
3. This Order is a full and final resolution of case numbers 2021-1500 and 2021-7055. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about March 9, 2021, the Boards received a complaint against Respondent and sent a 30-day letter. Respondent provided a response.

b. Respondent's client documentation did not meet standards of care. Respondent failed to provide client records to his clinical supervisor.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Boards finds that Respondent violated section 12-245-224(1)(g)(l) and (u), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline.

(u) Has falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries on patient records.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction that the Boards believe is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Boards hereby admonish Respondent for violations of section 12-245-224(1)(g)(l) and (u), C.R.S. This Order is effective as a Letter of Admonition, set forth by section 12-20-404(4), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within twelve (12) months of the effective date of this Order, Respondent must successfully complete fourteen (14) hours of Board-approved professional continuing education ("CE") courses in the areas of Marriage and Family Therapy Ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed

pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representative.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall

not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Boards.

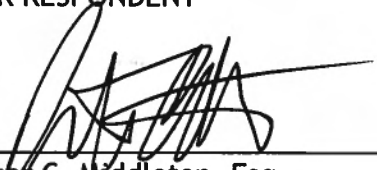
AGREED TO AND ACCEPTED BY:

RESPONDENT



XANDER JOHN BURGESS,
LICENSE NO. MFT.0002050
LICENSE NO. LPC.0017035
REGISTRATION NO. MFTC.0013931
(EXPIRED)

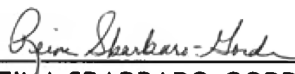
APPROVED AS TO FORM
FOR RESPONDENT



Peter C. Middleton, Esq.
Hall & Evans, LLC

AGREED TO AND ORDERED BY:

STATE BOARD OF MARRIAGE AND FAMILY
THERAPIST EXAMINERS AND STATE
BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



REINA SBARBARO-GORDON
Program Director

Effective this 14th day of
September, 2022.